

MI.2 Permit Application Checklist

Everything a Michigan owner-builder gathers, verifies, and files — organized around the five approvals the State's own permit application asks your enforcing agency to sign off.

Before you use this document

This is a process reference, not legal advice. Michigan's construction code is a single statewide code, but it is administered by more than 1,800 separate units of government — and your township, city, county, or the state Bureau of Construction Codes may each enforce a different trade on the same parcel. Confirm every item with the enforcing agency that will actually issue your permit before you rely on it.

THE FIVE APPROVALS PRINTED ON THE STATE'S OWN FORM

Page 3 of the Bureau of Construction Codes' Building Permit Application carries a block headed **Environmental Control Approvals**, with a row for the enforcing agency to record whether each one was required, whether it was approved, and its date and number. It is the closest thing Michigan has to a statewide pre-permit checklist, and every one of the five is handled by **somebody other than the building inspector**.

- **A — Zoning.** Your township, city or village. Use, setbacks, height, lot coverage, accessory buildings. Zoning is *not* part of the construction code and is never preempted by it.
- **B — Fire District.** Your local fire authority. Commonly access, turnaround and water supply on rural parcels.
- **C — Health Department.** Your county or district health department: septic and private well. On a rural lot this is the long pole — start it first.
- **D — Soil Erosion.** Your county enforcing agency, unless your municipality has adopted its own approved ordinance (MCL 324.9105, 9106).
- **E — Flood Zone.** Floodplain review, where the parcel sits in a mapped special flood hazard area.

Work these five backwards from the one that takes longest

Owner-builders routinely fill in the building permit application first and then discover that the septic evaluation cannot be scheduled until the frost is out of the ground, or that the soil erosion permit is issued by an office in a different building than the one taking their plans. **Start C (health department) the day you have a parcel** — before you buy it, if you still can — and treat A, B, D and E as parallel tracks that all have to land before your building permit can issue.

Bureau of Construction Codes Building Permit Application, form BCC-324 (04/2024), page 3, "Environmental Control Approvals," read at michigan.gov/lara in August 2026. Local enforcing agencies use their own application forms; the five approvals behind the block are the same, but the form you fill in will look different.

A. SITE AND PROJECT VERIFICATION

A1: Before anything else

	Item	Date	Notes / who confirmed
☐	Confirmed which agency issues each of your four permits — township, city, village, county, or the State. Do MI.4 first; in Michigan this is not a formality		
☐	Parcel number and 911 address confirmed Parcel #: _____ Address: _____		
☐	Deed recorded in your name — the exemption belongs to "an owner of property"		
☐	Zoning district and permitted use verified with the township, city or village		
☐	Required setbacks confirmed in writing Front: _____ Side: _____ Rear: _____ Other: _____		
☐	Easements, rights-of-way, and recorded restrictions identified		
☐	Flood zone status checked; floodplain requirements identified if in a mapped special flood hazard area		
☐	Driveway / road tie-in requirement confirmed with the county road commission (or MDOT if you connect to a state trunkline)		
☐	HOA or covenant approval obtained if applicable — private, not governmental; no agency will check it for you		

B. THE APPLICATION PACKAGE

Michigan tells you what the application must contain, in the statute itself: *"a detailed statement in writing, verified by affidavit of the individual making it, of the specifications for the building or structure, and full and complete copies of the plans drawn to scale of the proposed work,"* plus *"a site plan showing the dimensions, and the location of the proposed building or structure and other buildings or structures on the same premises,"* and the full name and street address of **the owner in fee** of the land.

B1: Forms and proofs

	Item	Date	Notes
☐	Building permit application, completed and signed — the signature sits under the section 23a warning; read it (see MI.1)		
☐	Separate electrical, plumbing and mechanical permit applications — confirm whether each goes to the same office		
☐	Estimated project cost stated Stated cost: \$ _____		
☐	Workers' compensation carrier, employer identification number, and unemployment agency number — or the reason for exemption for each. The state form gives you a line for the reason		
☐	Any local homeowner affidavit or homeowner-permit acknowledgement your enforcing agency uses — read it before signing; its terms are local		

B2: Plans and supporting drawings

	Item	Date	Notes
☐	Two sets of construction documents (the state's requirement; confirm the count and format your agency wants — many now take digital)		
☐	Site plan showing dimensions, the proposed building, every other structure on the premises, well and septic locations, and the driveway		
☐	Foundation plan, floor plans, elevations, wall sections, framing plan		
☐	Electrical, plumbing and mechanical layouts as your agency requires		
☐	Energy compliance documentation (see section D) Path used: _____		
☐	Engineered or manufacturer specifications for anything non-standard — trusses, ICF, SIPs, long spans, deep or stepped foundations		

B2: Plans and supporting drawings

	Item	Date	Notes
☐	Calculated floor area worked out and written down — this decides whether your plans need a seal Calculated floor area: _____		

THE 3,500 SQUARE FOOT RULE — MEASURED IN A WAY NOBODY EXPECTS

Michigan requires construction documents to be sealed and signed by a licensed architect or professional engineer, and then exempts small houses. The state permit application prints the rule like this: *"The seal and signature is not required for one- and two-family dwellings less than 3,500 square feet of calculated floor area."* Every Michigan summary repeats the number. Almost none of them prints the definition — and the definition is the whole rule.

"Calculated floor area" is habitable space only

The Occupational Code defines it: **"Calculated floor area means that portion of the total gross area measured to the outside surfaces of exterior walls intended to be habitable space."** And then defines that: **"Habitable space means space in a building used for living, sleeping, eating, or cooking. Habitable space does not include a heater or utility room, a crawl space, a basement, an attic, a garage, an open porch, a balcony, a terrace, a court, a deck, a bathroom, a toilet room, a closet, a hallway, a storage space, and other similar spaces."**

Read that list again. **Basements, garages, attics, bathrooms, closets, hallways, utility rooms, decks and porches all come out.** A house a builder would market as 4,200 square feet can sit comfortably under 3,500 square feet of calculated floor area once the two bathrooms, the mudroom, the stair hall, the walk-in closets and the attached garage are removed — and it is the calculated figure, not the marketing figure, that the statute uses.

Two practical consequences. First, do the arithmetic before you assume you need to pay for a sealed plan set; plenty of Michigan owner-builders buy one they did not need. Second, **show your work on the application** — write the calculated floor area down and be ready to explain which spaces you excluded and why, because the plan reviewer is looking at the same definition.

There is also a **second, separate exemption** that owner-builders almost never hear about, and it has no square-footage limit at all: the article does not apply to *"an owner doing architectural, engineering, or surveying work upon or in connection with the construction of a building on the owner's property for the owner's own use to which employees and the public are not generally to have access."* That is a description of a house you are designing for yourself. Ask your enforcing agency how they apply it before you conclude either way — reviewers differ, and the seal question is worth settling in writing rather than in argument.

MCL 339.2012(1)(c), (1)(d) and (2)(a)-(b), Occupational Code. The 3,500-square-foot statement is quoted from the Bureau of Construction Codes' Building Permit Application, form BCC-324 (04/2024), page 2, which cites 1980 PA 299. Note the form also exempts "public works less than \$15,000 in total construction cost" — that is MCL 339.2011(2) and has nothing to do with your house. Verified August 2026.

C. SEPTIC, WELL, AND SOIL EROSION — NOT THE BUILDING OFFICE

On a rural Michigan parcel these three approvals sit on separate tracks, with separate offices and separate timelines, and two of them can stop your building permit. None of them is handled by the person who reviews your plans.

C1: Septic and well — county or district health department

	Item	Date	Notes
☐	Health department identified — Michigan counties are served either by a county health department or by a multi-county district health department; find out which is yours		
☐	Soil evaluation / percolation test applied for as early in the year as the ground allows		
☐	Septic permit issued — system type and drainfield location fixed Permit #: _____ Date: _____		
☐	Drainfield and reserve area shown on your site plan and consistent with the house footprint, the well, and the driveway		
☐	Well permit obtained from the health department before drilling Permit #: _____ Date: _____		
☐	Water sample submitted and results received after the well is completed — confirm who draws it and who pays		
☐	Confirmed whether your health department's sign-off must reach the building office before the building permit can issue, or alongside it		

Why your septic rules are local — and what that means

Michigan has **no statewide sanitary code** for onsite wastewater. A house system is legal as a groundwater discharge that needs no state permit, on one condition: it is *"less than 1,000 gallons per day and the disposal system is approved by the county, district, or city health department that has jurisdiction in accordance with **either the requirements of the local sanitary code or the provisions of the publication entitled 'Michigan Criteria for Subsurface Sewage Disposal,' April 1994.**"* (R 323.2210(a)(i))

That *either/or* is the whole story: your health department picks its own yardstick, and the Criteria say they are only a floor. So there is no Michigan setback, tank size or perc figure to print — **ask yours, in writing, before you site the house.**

*Mich. Admin. Code R 323.2210(a)(i) (Part 22 groundwater rules under Part 31 of NREPA) is the provision that makes a house septic system lawful without a state permit. The Michigan Criteria for Subsurface Sewage Disposal (April 1994, originally Michigan Department of Public Health, now hosted by EGLE) is a **guideline** by its own terms — it "does not have the force or effect of law" as to you — but a health department that has adopted it is expected to follow it and may not approve proposals that do not meet it except by variance. Local authority: MCL 333.2441, under which local health department regulations "shall be at least as stringent as the standard established by state law" and "supersede inconsistent or conflicting local ordinances." EGLE: onsite wastewater is a required local health department service, and roughly 35% of Michigan residents are on a private septic system. Legislation to create a statewide code (SB 771 of 2026) had not passed the Senate as of August 2026. Verified August 2026.*

C2: Soil erosion and sedimentation control (Part 91)

	Item	Date	Notes
☐	Identified your enforcing agency: the county is responsible throughout the county <i>unless</i> your municipality has adopted its own department-approved ordinance		
☐	Total earth change measured — house, driveway, septic field, staging and spoil. One acre or more triggers a permit Acres disturbed: _____		
☐	Measured to the water's edge of the nearest lake or stream — within 500 feet triggers a permit regardless of acreage Distance: _____		
☐	Confirmed whether a stricter local ordinance applies — a municipality's department-approved ordinance may set the bar lower		
☐	Permit obtained before any earth is moved Permit #: _____ Date: _____		

C2: Soil erosion and sedimentation control (Part 91)

	Item	Date	Notes
☐	Controls actually installed and maintained — silt fence, inlet protection, stabilised construction entrance, seeding		
☐	If you are buying a parcel that already has an SESC permit: got the written transfer notice from the seller		

The trigger, the hard stop, and the detail that catches people

The trigger is one acre or 500 feet. "A landowner or designated agent who contracts for, allows, or engages in, an earth change in this state shall obtain a permit from the appropriate enforcing agency before commencing an earth change which disturbs **1 or more acres of land** or which is **within 500 feet of the water's edge of a lake or stream**." Note water's edge — not the shoreline, not the ordinary high-water mark. And "lake" is defined to mean a water body of **1 acre or more**, so a small farm pond does not pull you in. (R 323.1704(1); R 323.1701(1)(d))

It gates your building permit — and this rule is the one to quote at the counter. "A local agency or general law township **shall not issue a building permit** to a person engaged in an earth change if the change requires a permit under part 91 or these rules **until** the county or local enforcing agency has issued the required state-prescribed permit." There is no equivalent anywhere in Part 91 itself — the sequencing exists only in the rules. (R 323.1711(2))

The duty applies even below the threshold, and the permit runs with the land. An owner whose earth change may contribute to sedimentation "shall implement and maintain" controls regardless (MCL 324.9116); and on a transfer the permit, its conditions and responsibility for existing violations pass to the buyer (MCL 324.9112(2)–(5)).

Soil erosion: the numeric trigger and the building-permit hard stop are in the administrative rules promulgated under MCL 324.9104 — Mich. Admin. Code R 323.1701 to R 323.1714, read at ars.apps.lara.state.mi.us — **not** in Part 91 itself, which is why most summaries cite the statute and get the numbers from somewhere else. Permit trigger and definitions, R 323.1704(1) and R 323.1701(1)(d); building permit gate, R 323.1711(2); exemptions including the 24-hour stabilization rule and the discretionary waiver for earth changes under **225 square feet**, R 323.1705. Statute: county responsibility, MCL 324.9105(1); municipal ordinances, which must be department-approved and may be **more restrictive**, MCL 324.9106(1)–(2); transfer, MCL 324.9112; owner's control duty, MCL 324.9116. EGLE's program FAQ closes the loophole builders try to walk through: "cutting trees and removing stumps to accommodate future development activities is not 'logging' and permits are required." Verified August 2026.

D. CODE EDITIONS — MICHIGAN IS NOT WHERE THE TABLES SAY IT IS

One code book covers your whole house. The Bureau states it for each trade in turn: "*provisions for one- and two-family dwellings are included in the Michigan Residential Code*" — building, electrical, mechanical and plumbing alike. You do not need to buy the Michigan Building, Plumbing or Mechanical Codes to build a house. You need the **Michigan Residential Code**.

Buy the 2015 book. A court order is why.

Michigan adopted rule sets that would have updated the Michigan Residential Code and the residential chapter of the Energy Code to the **2021** IRC and 2021 IECC, "*set to become effective on August 29, 2025.*" They never took effect. On **July 7, 2025** the Michigan Court of Claims issued a stipulated order in *Home Builders Assoc et al. v LARA et al.* temporarily preventing LARA from "*taking additional steps necessary to apply or implement*" both rule sets while the litigation continues.

LARA's own notice states the consequence: "*While this stipulated order remains in place, the **2015** versions of the IRC and residential provisions of the IECC standards currently adopted, in part, by each rule set will remain valid and in effect.*"

This is why "adopted codes by state" tables get Michigan wrong. The rules were filed and carried a real effective date, so the tables flipped Michigan to 2021 — and then a court froze them seven weeks beforehand. Buy the wrong edition and your wall assemblies, your fenestration values and your air-sealing obligations are all from a code that does not apply to you. **Confirm the edition with your enforcing agency before you draw plans**, because this one can change with a court order rather than a legislative session.

*LARA Bureau of Construction Codes, "2021 Code Injunction — Residential Part 5 and Energy Part 10," published at michigan.gov/lara and still the document linked from the Bureau's Part 5 and Part 10 entries when read in August 2026. The two rule sets are 2022-16-LR Construction Code — Part 5. Residential Code, and 2021-48 LR Construction Code — Part 10. Michigan Uniform Energy Code; both were still listed among the Bureau's currently-open rules at that date. Michigan's **electrical** code is a separate rule set (Part 8) and was not enjoined — it is also under active revision, with a public advisory meeting held in August 2026, so confirm the NEC edition your agency is enforcing before you buy wire.*

The energy code is a separate rule set from the residential code, and the two tests it puts on you are not equally binding. Residential energy sits in **Part 10**, which adopts the residential provisions of the **2015 IECC**. Michigan spans **three climate zones and only three** — 5A across the south, 6A through the northern Lower Peninsula and eastern UP, and 7 in ten western UP counties — with a county-by-county table in the code itself. Look yours up rather than guessing from latitude.

Duct testing is mandatory. The blower door is not.

Duct leakage: 4 cfm at 25 Pa per 100 square feet of conditioned floor area, and the code labels it "(mandatory)." At rough-in the figure is 4 cfm, or 3 cfm where the air handler is not yet installed. The real way out is structural, not procedural: *"the total leakage test is not required for ducts and air handlers located entirely within the building thermal envelope."* Keep the ducts inside and the test disappears.

Air leakage: 4 ACH50 — labeled "(prescriptive)." Two changes from the base 2015 IECC, which sets 3 ACH50 and marks it mandatory: Michigan loosened the number *and* the status. Prescriptive means it is avoidable by complying through the performance or energy-rating-index path instead. Most summaries report these two backwards.

D1: Code and energy

	Item	Date	Notes
☐	Edition of the Michigan Residential Code your agency is enforcing, confirmed in writing Edition: _____ Confirmed: _____		
☐	NEC edition adopted by Michigan Part 8 rules, confirmed separately — it does not move with the residential code NEC edition: _____ Confirmed: _____		
☐	Climate zone for your county looked up in the Part 10 table — 5A, 6A or 7 Climate zone: _____		
☐	Insulation R-values for walls, ceiling, floors and foundation shown on the plans		
☐	Window and door U-factor and SHGC values documented		
☐	Compliance path chosen — prescriptive, simulated performance, or energy rating index. This decides whether you owe a blower-door result Path: _____		
☐	Duct leakage test arranged — this one is mandatory unless every duct and the air handler sit inside the thermal envelope Tester: _____ Result: _____		

D1: Code and energy

	Item	Date	Notes
☐	Ground snow load for your site obtained and given to whoever sizes your roof framing — Michigan's range is wide and the lake-effect belts are the high end		

*Residential energy: Mich. Admin. Code **Part 10**, Michigan Uniform Energy Code — R 408.31059 adopts "the residential provisions of the international energy conservation code, 2015 edition"; duct leakage, R 408.31066; air leakage, R 408.31069; climate zone table, R 408.31060e, matched by the Residential Code's own Table N1101.10 at R 408.30547c. The Michigan Residential Code points there: "buildings shall be designed and constructed in accordance with the Michigan uniform energy code part 10 rules" (R 408.30524). **Do not use Part 10a** — that is the commercial energy code (2021 IECC and ASHRAE 90.1-2019, effective April 22, 2025) and it expressly excludes residential buildings. Verified August 2026.*

E. FEES, AND THE CLOCKS THAT START WHEN THE PERMIT ISSUES

Local fee schedules are local — ask for yours in writing. But if the **State** is your enforcing agency, the schedule is published, and it works in a way worth understanding even if it is not yours.

How the State's own fee schedule works (state-enforced jurisdictions)

Item	What it means for you
The fee is not based on your estimated cost	The state computes a "total cost of improvement" from its own Square Foot Construction Cost Table . For use group R-3 — one- and two-family — the table runs from \$122.74 per square foot for Type IA construction down to \$95.34 for Type VB , which is ordinary wood framing. Unfinished basements are computed separately at 20% of table cost. Understating your build cost does not lower the fee.
The building permit fee itself	Banded: \$435.00 plus \$2 per \$1,000 over \$100,000 in the \$100,000–\$500,000 band. The first \$100.00 of an application fee is non-refundable. Plan review for state-issued permits is assessed at 30% of the building permit fee.
Certificate of occupancy	\$50.00, and required for all building permits except demolition permits.
Trade permits	Each carries its own \$75.00 non-refundable application fee, then per-item charges — electrical is priced per circuit, per service size, per 25 fixtures/outlets, and so on.
Letting a permit lapse	\$75.00 to re-open. Closed permits cannot be refunded.

The 180-day rule — and the trap inside it

"A permit remains valid as long as work is progressing, and inspections are requested and conducted. A permit shall become invalid if the authorized work is not commenced within 180 days after issuance of the permit or if the authorized work is suspended or abandoned for a period of 180 days after the time of commencing the work."

Then the sentence people miss, printed in capitals on the state's form: "A PERMIT WILL BE CLOSED WHEN NO INSPECTIONS ARE REQUESTED AND CONDUCTED WITHIN 180 DAYS OF THE DATE OF ISSUANCE OR THE DATE OF A PREVIOUS INSPECTION." It is not enough to be working. The clock resets on **inspections**, not on effort — which is exactly the way a part-time owner-builder gets caught over a Michigan winter. If a long gap is coming, call an inspection you can pass before it starts.

What the State says about its own turnaround: *"the inspector will respond to an inspection request within two (2) business days to schedule the inspection. Inspections are typically performed within five (5) business days subject to the inspection schedule."* That is published practice for state-issued permits, not a statutory deadline, and it does not bind a local enforcing agency. Ask yours what to expect and write it in MI.4.

Application filed: _____ Permit issued: _____ Permit #: _____

Sources — every Michigan claim in this document (verified August 2026)

What this document states	Authority
Written application, verified affidavit of the specifications, full plans to scale, site plan, owner in fee named	MCL 125.1510(1)
Separate permits may be required for particular kinds of work, including plumbing and electrical	MCL 125.1510(6)
No building permit for ordinary repairs; none for a building incidental to agricultural use of the land	MCL 125.1510(7), (8)
Seal not required for 1- and 2-family dwellings under 3,500 sq ft of calculated floor area — which is habitable space only, excluding basements, garages, baths, closets, halls and utility rooms; plus a separate owner design exemption with no area limit	MCL 339.2012(1)(c), (1)(d), (2); 339.2014(e)
Septic: no statewide sanitary code — a house system is a permit-exempt discharge approved by the local health department under its own code or the 1994 Criteria	R 323.2210(a)(i); MCL 333.2441
Soil erosion permit: 1 or more acres, or within 500 feet of the water's edge of a lake or stream	R 323.1704(1)
No building permit may issue until the soil erosion permit has	R 323.1711(2)

Sources — every Michigan claim in this document (verified August 2026)

What this document states	Authority
County enforces countywide unless a municipality has an approved, possibly stricter ordinance; permit and violations transfer with the land; control duty applies regardless of threshold	MCL 324.9105(1), 9106, 9112, 9116
The 2021 IRC/IECC rule sets are enjoined; the 2015 editions remain in effect	LARA BCC, 2021 Code Injunction notice
Residential energy is Part 10 (2015 IECC): zones 5A/6A/7, duct leakage mandatory at 4 cfm, air leakage 4 ACH50 prescriptive	R 408.31059, .31066, .31069
Five environmental control approvals; two sets of construction documents; 180-day expiry and closure	BCC-324 (04/2024), pp. 2–3
State fee bands, \$50 certificate of occupancy, \$75 re-open, 30% plan review, R-3 square-foot cost table	BCC Fee Schedule, eff. April 1, 2024

Read any MCL section cited above free at **legislature.mi.gov** → Laws → MCL Search, or directly at legislature.mi.gov/Laws/MCL?objectName=mcl-339-2403 with the chapter and section swapped into the last two number groups — mcl-125-1510, mcl-339-2012, and so on. All statute text in this kit was read at that source and verified August 2026.